

LAW AND MOTION TENTATIVE RULINGS

DATE: AUGUST 31, 2026 TIME: 8:30 A.M.

No. 22CV00539

BRIGHT V. CALIF. FAIR PLAN ASSOC., et al.

PLAINTIFF'S MOTION TO COMPEL DEPOSITION OF VICTORIA ROACH

**DEFENDANT CALIF. FAIR PLAN ASSOC.'S MOTION FOR PROTECTIVE
ORDER REGARDING NOTICE OF DEPOSITION FOR VICTORIA ROACH
AND ADDITIONAL PMQ, AND FOR MONETARY SANCTIONS**

Plaintiffs' motion is denied. Plaintiffs failed to support their motion with evidence that Ms. Roach's deposition is necessary and that they have exhausted less intrusive means of discovery. For example, they have not served written discovery to determine the state of Ms. Roach's direct knowledge or involvement in plaintiffs' claim.

Defendant's motion is granted. As explained below, Ms. Roach is not compelled to testify at deposition since plaintiffs failed to meet their burden to require an apex deposition. Plaintiffs' additional PMQ deposition notice appears moot; in any event, no further PMQ deposition is warranted based on the court's order of July 15, 2026. The further PMQ notice was served before that order limiting further deposition questions of defendant's Vice President of Claims to two topics as they applied to plaintiffs' claims only (the California Department of Insurance Market Conduct Examination/Report and claims administration and staffing of the plaintiffs' claim). The court declines to impose sanctions against plaintiffs at this time.

I. BACKGROUND

Plaintiffs Mark and Tingting Bright allege causes of action for breach of contract and breach of the implied covenant of good faith and fair dealing against their homeowner's insurance company, California FAIR Plan.

Plaintiffs reside at 11025 Alba Road, Ben Lomond. (Complaint ¶3.) Plaintiffs were forced to evacuate during the 2020 wildfire event and returned to their home that was significantly damaged by smoke, soot, ash and char but not a total loss. Plaintiffs purchased an insurance endorsement through Defendant; their homeowners' policy is with Farmers Insurance and specifically excludes coverage for any peril which is covered by the CFPA endorsement including smoke damage. (Complaint ¶¶ 13-15.) Plaintiffs contend that the CFPA policy does not conform to state law that requires coverage for all loss by fire in several ways: requires loss be evidenced by permanent physical changes to covered property and limits coverage for smoke damage to that which is visible to the naked eye or odor from smoke or ash detected by the unaided nose of an average person, not by subjective senses or laboratory testing. (Complaint ¶¶ 16-31.) Plaintiffs timely and properly submitted their fire loss claim to CFPA, which included

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evidence substantiating smoke damage via a public insurance adjuster, documentation and scientific testing and analysis. (Complaint ¶¶ 34-36.)

Plaintiffs allege defendants delayed the handling, adjustment and resolution of their claim and have taken unreasonable positions, contrary to state law, and failed to thoroughly investigate the claim. (Complaint ¶¶ 37-43.) As a result, plaintiffs were forced to undertake partial repairs to mitigate their losses and defendant refused to reimburse and inspect those mitigation efforts, despite Plaintiffs advising it that they had a newborn baby which required a safe habitable home. (Complaint ¶¶ 44-49.) Defendant allegedly unreasonably denied plaintiffs claim, ignored evidence, delayed inspections, and refused to acknowledge their obligations under the policy. (Complaint ¶¶ 50-58.)

Plaintiffs seek to compel the deposition of defendant's President, Victoria Roach. Defendant opposes on the grounds it is an apex deposition and plaintiffs have not met the criteria for forcing the highest level executive be deposed.

Defendant moves for a protective order to prevent Ms. Roach's deposition, as well as a further PMQ deposition on topics they contend are not relevant to plaintiffs' claims, and will not lead to relevant admissible evidence.

II. LEGAL STANDARDS

"The court, for good cause shown, may make any order that justice requires to protect any party, deponent, or other natural person or organization from unwarranted annoyance, embarrassment, or oppression, or undue burden and expense." (Code Civ. Proc., § 2025.420, subd. (b).)

Under the apex doctrine, a court may also refuse to compel the deposition of a corporate officer at the apex of the corporate hierarchy, absent a reasonable indication of the officer's personal knowledge of the case *and* exhaustion of less intrusive discovery methods, given that such "high level" depositions raise a tremendous potential for discovery abuse and harassment. (*Liberty Mutual Ins. Co. v. Superior Court* (1992) 10 Cal.App.4th 1282, 1287-1288.)

When the corporation seeks a protective order to avoid the apex deposition, the court must first "determine whether the plaintiff has shown good cause that the official has unique or superior personal knowledge of discoverable information. If not, [...] the trial court should issue the protective order and first require the plaintiff to obtain the necessary discovery through less-intrusive methods." (*Id.* at p. 1289.) Less intrusive methods include interrogatories directed to the high-level official to explore the state of his or her knowledge or involvement in plaintiff's case, depositions of lower-level employees involved in the case, and a PMQ organizational deposition. "Should these avenues be exhausted, and the plaintiff make a colorable showing of

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good cause that the high-level official possesses necessary information to the case, the trial court may then lift the protective order and allow the deposition to proceed.” (*Ibid.*)

III. DISCUSSION

Plaintiffs argue Ms. Roach is an appropriate witness based on the following: at the time of plaintiffs’ claim, she was the Senior Vice President of Business Operations; she was the immediate supervisor of Este Natale, who served as Vice President of Claims at that time; she has been allegedly directly involved in defendant’s oversight of smoke and ash claims; she has spoken publicly about defendant’s practices and institutional position regarding these claims, including before the California State Assembly; and she was in the chain of authority over the denial of plaintiffs’ claims. Plaintiffs assert they have exhausted less intrusive means of obtaining this discovery by serving extensive written discovery, deposing the adjusters, claims handlers, and defendant’s PMQ on their claim. Plaintiffs contend that at the PMQ deposition, defense counsel repeatedly instructed the witness not to answer questions about the Department of Insurance’s regulatory findings related to defendant’s handling of smoke and ash claims, and about executive-level and governing-committee decision-making—the same topics it now says Plaintiffs must explore with lower-level witnesses before reaching Ms. Roach. They argue defendant cannot block this discovery from below and simultaneously use the apex doctrine to block discovery from the remaining witness who can provide it.

The court will not permit Ms. Roach’s deposition. First, it does not appear that plaintiffs have yet sent written discovery to Ms. Roach to determine the state of her knowledge or involvement in plaintiff’s case.¹ This is an appropriate step in determining if her deposition is necessary. Second, the court has already narrowed the scope of discovery as to the California Department of Insurance Market Conduct Examination/Report and claims administration and staffing of the plaintiffs’ claim, which are topics plaintiffs seek from Ms. Roach. (Order, July 15, 2026.) By the hearing on this motion, plaintiffs will have conducted the continued the deposition of Este Natale, Vice President of Claims, on those narrowed topics, satisfying plaintiffs’ request for the information.

Defendant’s requests for judicial notice in support of its motion is granted as to Exhibits 2 and 3 (as are defendant’s Exhibits 3 and 4 in opposition to plaintiffs’ motion) pursuant to Evidence Code section 452, subdivision (h). The court need not take judicial notice of its own records, so the remainder of defendant’s requests are denied.

¹ Ms. Roach’s declaration in support of defendant’s motion expressly denies any direct involvement in processing or personal knowledge of plaintiffs’ claim.

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No. 25CV00168

STEINMUELLER v. MONSANTO COMPANY

**DEFENDANT MONSANTO COMPANY'S MOTION FOR PARTIAL SUMMARY
JUDGMENT/ADJUDICATION**

The motion is vacated. The court finds portions of plaintiff's complaint survive following *Monsanto Co. v. Durnell* (2026) __ U.S. __ [146 S. Ct. 2001] (*Durnell*) since certain allegations are not barred by *Durnell*'s holding that state tort actions are preempted by application of the Federal Insecticide, Fungicide, and Rodenticide Act (FIFRA). Because plaintiff has voluntarily dismissed one defendant (Far West Nursery), concedes that his fraud and express warranty claims should be dismissed, and since portions of his surviving claims incorporate failure to warn allegations, the court orders plaintiff to file a second amended complaint eliminating any claim related to failure to warn or labeling. Plaintiff's second amended complaint shall be filed no later than September 30, 2026. Defendant's responsive pleading shall be filed in conformance with Code of Civil Procedure section 430.10 et seq.

Plaintiff filed his first amended complaint on March 10, 2025, with six causes of action: strict liability, design defect; strict liability, failure to warn; negligence; fraud; breach of express warranties; and breach of implied warranties.² In response to defendant's motion, plaintiff conceded that his claims for fraud and breach of express warranty claims could be dismissed. Therefore, the remaining claims are strict liability, design defect; strict liability, failure to warn; negligence; and breach of implied warranties.

Defendant Monsanto Co. argues that this action may be dismissed under *Durnell* since it is a failure to warn case preempted by federal law. In *Durnell*, the issue was whether a claim could be brought against the maker of a product governed by FIFRA under the theory that the label was inadequate. FIFRA's preemption clause specifies that a "State shall not impose or continue in effect any requirements for labeling or packaging in addition to or different from those required under this subchapter." (7 U.S.C. § 136v, subd. (b).) The Court, analyzing the plain text, determined that all state law labeling requirements -- including tort actions brought under state law -- are preempted by the broad scope of the statute. (*Durnell*, 146 S.Ct. at p. 2010.) The court agrees that any claim or allegation related to labeling or failure to warn is preempted by FIFRA and barred by *Durnell*.

² Plaintiff's seventh cause of action for exemplary damages is a remedy.